4276

Repealed
47:901 §149

Executive Order

By virtue of the authority contained in Sec. 8, of the Panama Canal Act, as amended by the Act of Congress approved September 21, 1922, it is ordered;

1. That the following rules of practice and procedure for the United States District Court of the Canal Zone shall be in force on and after the date hereof.

2. That all rules of practice and procedure contained in the Codes of Criminal and Civil Procedure of the Canal Zone, in conflict herewith, and the rules of practice and procedure, numbered 1 to 23, inclusive, contained in the Executive Order of December 30, 1921, are hereby repealed.

Rules of Court

1

Change of Venue

The district judge may order a change of venue in any case, civil or criminal, from one division of said court to the other, whenever in his opinion, in the interest of justice, such action becomes necessary. Such change of venue may be ordered upon the motion of the judge, on the application of either party or by consent of parties.

Whenever a change of venue has been ordered by the court, the clerk shall immediately make out a true transcript of all the orders made in said cause, and certify thereto under his official seal, and transmit the same with the original papers in the case to the other division of the district, and the case shall be tried therein as if it had been instituted there originally.

(Old Rule 2. L. C. Z. 196–197. Secs. 11 & 12, E. O. 163)

2

Court Dockets

The clerk, under the advice of the judge and the district attorney, may cause to be prepared, and shall keep, all such dockets as may be necessary for the purposes of said court.

(Old Rule 3)

3

Motion Days and Dockets

Saturday of each week shall be motion day in the Balboa division of said court, and the first and third Mondays of each month shall be motion days in the Cristobal division thereof.

Unless the court is engaged in the trial of a case, such motion days shall be devoted to hearing motions, demurrers, entering decrees, assigning causes for trial, confirming reports, entering default judgments, and any other matter in the conduct and preparation of causes preliminary to or after trial.

All motions or other hearings not consented to must be made in writing, filed with the clerk, and by him noted upon the book known as the "Motion Docket". Motions filed in the Balboa division, on or before Thursday of each week shall be heard on the following Saturday, and motions filed in the Cristobal division on or before Friday preceding the first and third Mondays of each month shall be heard on the next following motion day, unless in any case the court orders such

hearing deferred; provided that any motion may be heard by consent of the parties at the conclusion of the regular motion docket, or any motion may be heard at any time upon the order of the court and upon such notice to the parties as the court may direct.

(Old Rule 4)

4

PLACING MOTION ON DOCKET IS NOTICE

Any motion or demurrer filed with the clerk and by him placed upon the docket, shall be notice to opposing counsel, and no further notice need be given except in those instances where the law requires notice to be otherwise served.

(Old Rule 5)

5

HOW PLEADINGS AND MOTIONS MAY BE FILED

An answer may be filed in the clerk's office if presented within the time prescribed by the rules or the Code of Civil Procedure. If the time shall have expired within which an answer or any other pleading must be filed, it may be filed thereafter only by consent of the court. Any pleading which the court directs to be filed within a given time may be filed in the clerk's office, if presented for filing within the time prescribed.

Any motion or demurrer may be filed in the clerk's office unless there be some order of the court or rule of procedure which prohibits the filing thereof, and all pleadings or motions filed with the clerk must be noted of record by him.

(Old Rule 6)

6

PLEADINGS IN CIVIL ACTIONS

All pleadings and motions in civil cases shall be signed by the attorney or party to the suit or his duly authorized agent or representative, and shall be endorsed on the back thereof with the docket number, the name or names of the parties plaintiff and defendant, the nature of the action, and the name of the attorney of record.

There shall be filed with the original of all motions and all pleadings other than the complaint, a copy thereof for the adverse party, which shall be endorsed on the back in like manner as the original; and it shall be the duty of the clerk to show the date of the filing thereon and promptly deliver or mail such copy to the adverse party or his attorney of record.

(Old Rule 8)

7

JURY

In the trial of any cause, criminal or civil, where a jury trial may be demanded, if either party shall desire a jury, request therefor must be made at the time when such cause is assigned for trial. At the trial each side shall be entitled to six peremptory challenges. A waiver of a challenge by either party shall preclude such party, except by consent of court, from thereafter challenging peremptorily any juror then in the jury box, and the remaining challenges of such party shall be limited to jurors thereafter called.

(Old Rule 7)

8

EXCEPTIONS

a. An exception is an objection upon a matter of law to a decision made by a court, tribunal, judge, or other judicial officer, in an action or proceeding. Except as provided in subsection b. hereof, the exception must be taken at the time the decision is made. Rulings of the court upon minor discretionary matters, such as adjournments, postponements of trials, and the like, shall not be subject to exception.

b. WHAT DEEMED EXCEPTED TO: The verdict of the jury, the final decision in an action or proceeding, an interlocutory order or decision finally determining

the rights of the parties or some of them, an order or decision from which an appeal may be taken, an order sustaining or overruling a demurrer, granting or refusing a motion to set aside an information, a motion in arrest of judgment, a motion for a new trial, making or refusing to make an order after judgment affecting any substantial rights of the parties, refusing to grant a change of the place of trial, allowing or refusing to allow an amendment to a pleading, striking out a pleading or a portion thereof, an order made upon ex parte application, an order or decision made in the absence of a party, and instructions given or refused, are deemed to have been excepted to.

(Old Rule 16; Code of Civ. Proc., Sec. 134. Cal. C. C. P., Sec. 646–647. Code of Crim. Pro., L. C. Z., 206)

9

Time For Filing Bill of Exceptions

A bill of exceptions must be prepared, settled, and filed within ten days after judgment is entered; provided, however, that the court or judge, for good cause shown, upon application made within such time, may extend the time for preparing, settling and filing such bill of exceptions, for a period not to exceed sixty days from the time of making such order; provided, further, that an additional extension of time beyond that granted by the court may be allowed on stipulation of parties.

(Old Rule 9. Code of Crim. Proc., L. C. Z., 206. Code Civ. Pro., Sec. 136)

10

Motion for New Trial

A motion for a new trial shall be made only after verdict of the jury or decision by the court, and before judgment. Such motion shall be filed within five days after verdict of the jury or decision by the court, unless, for good cause shown, the court or judge, within such five-day period, extends such time. Such motion shall be in writing and must set out specifically the grounds upon which the same is made. When a ground of a motion is the insufficiency of the evidence to justify the verdict or decision, the motion must specify the particulars in which the evidence is alleged to be insufficient. If a ground of the motion be error in law occurring at the trial and excepted to by the moving party, the motion must specify the particular errors upon which the party will rely, and in the case of a question as to the admissibility of evidence the question, objection or motion, ruling, and exception thereto must be fully set out. Such motion shall be heard and determined as speedily as possible after the same is filed.

(Old Rule 10. Cal. C. C. P., Sec. 659)

11

Motions and Actions to Vacate or Set Aside Judgments

A motion to vacate or set aside a judgment or order of the district court must be in writing, and must be filed within ten days after such judgment or order was entered except in the case of a default judgment. In the latter case the same must be filed within the time and upon the terms prescribed in Section 106 of the Code of Civil Procedure, which is hereby re-enacted and adopted by reference as a part of these rules. Such motion must be accompanied by a showing that a meritorious defense exists to the cause of action upon which the judgment is based. Such a motion shall not operate in any case as a stay of execution unless the court shall so order, or the party applying therefor shall execute a supersedeas bond to be approved by the court.

An action to reverse, vacate and set aside the judgment of subordinate tribunals, obtained by fraud, accident, mistake or excusable negligence, must be brought within six months from the rendition of such judgment; otherwise, the procedure therein as prescribed in Sections 141 to 145, inclusive, of the Code of Civil Procedure, shall be followed, and such sections are hereby re-enacted and adopted by reference as a part of these rules.

(Old Rule 15. Code Civ. Proc., Secs. 106, 141 to 145)

12

Arguments on Motions.

No argument of any motion shall be extended beyond thirty minutes to the side without permission of the court.

(Old Rule 20)

13

Time for Making Defense

In all civil actions commenced in the district court, except divorce and admiralty actions, where personal service has been had, the person served shall make defense in court within ten days from the service of summons, and where service by publication is had, within forty days from the last publication of summons.

(Old Rule 18)

14

Time Within Which Court Orders Must be Prepared

When a written order is taken in court, and the attorney for either side is directed to prepare the order so taken, it shall be prepared and presented to the court or judge for approval and delivered to the clerk not later than five days thereafter.

(Old Rule 19)

15

Preparing Court Orders

All orders, minutes of proceedings, or actions taken in court, and required to be made matters of record, must be prepared and recorded not later than one week from the date when made.

(Old Rule 23)

16

Informations

Every offense of which the district court has jurisdiction must be prosecuted by information signed and verified by the district attorney, or, in the case of his absence or inability to act, by an assistant district attorney appointed by the Governor of The Panama Canal. The verification must state that the information is based upon due investigation of the facts relating to the crime charged therein. All informations so prepared must be filed with the clerk. A criminal cause so prosecuted shall stand for trial during the term in which the information is filed or at the next succeeding term, after the apprehension of the defendant, unless for good cause shown, a continuance thereof to a later date is ordered. Any such information may be amended in matters of form; but such amended information must not charge a crime different from the one charged or sought to be charged in the original information.

(Old Rule 17. E. O., p. 97, Code Crim. Pro., Secs., 3, 65, 94, 100. L. C. Z., pp. 173, 183, 187, 188)

17

Bonds to be Recorded

All fiduciary bonds, attachment bonds, bonds required to be executed in all matters of receivership, injunction proceedings, and any and all other bonds required by the Code of Civil Procedure, except bonds for cost, bonds for arrest, or appeal from inferior courts, shall be copied in full and properly indexed by the clerk in a book kept for that purpose, and such copy, duly authenticated by him, shall have the force and effect of the original, and the cost of recording shall be taxed as part of the cost in the court proceeding or action wherein filed, or in the settlement thereof.

(Old Rule 11)

18

Attorneys on Bond

Attorneys will not be accepted as sureties upon bonds or recognizances required to be filed in court.

(Old Rule 12)

19

Bonds and Costs

The Court may at any time before trial require a nonresident plaintiff to file an undertaking for costs. The defendant may at any time move for security for costs, and when the motion is made the nonresidence must be shown by affidavit, unless it is admitted or it appears upon the papers or from the record.

(Old Rule 13)

20

Bonds

In all proceedings in which a bond is required to be given the clerk may accept a cash deposit in the sum of the bond, a corporate surety, or a personal bond with approved sureties. No corporate surety may be accepted which is not qualified to do business in the Canal Zone. At least one of the sureties on a personal bond shall be a resident of the Canal Zone. Where a cash bond is given, money deposited with the clerk may be withdrawn only upon order of the court.

(Old Rule 14)

21

Stenographic Notes

Whenever, in the discretion of the court, the importance of the case demands, the judge may cause the testimony in the case, or such part of the testimony as he may deem proper, to be taken down in shorthand by the official court reporter connected with the court and qualified to do such work, and the testimony so taken shall not be transcribed unless so directed by the judge. Provided: Upon approval of the court, any lawyer practicing before the court may have his own stenographer in attendance for the purpose of reporting a case for his own personal use.

The original stenographic notes, taken by the court reporter, shall be a part of the proceedings in the cause; and, unless such notes are filed pursuant to an order of the judge, directing the stenographer to file the same with the clerk forthwith, or within a specified time, the same must be carefully preserved by the court reporter for at least twelve months after the final judgment of the court is rendered.

Whenever the official court reporter takes down the testimony in a case, the party making application for such work, except the Government, shall reimburse to the Government of the Canal Zone the actual time of the court reporter while thus engaged, no fractional part of a day less than a half day to be calculated; unless for good and sufficient cause shown the court shall waive this charge.

A party to either a civil or criminal cause, who desires a transcript of the stenographic notes of the testimony and proceedings therein, or a part thereof, shall request the court reporter to furnish the same. The court reporter will furnish to such party an estimate of the cost thereof, and such party, unless it be the Government, shall deposit with the court reporter the estimated cost of such transcript, and thereupon the court reporter must furnish such transcript with all reasonable diligence, to the party requesting the same. The court reporter shall charge the fees allowed for such service, and shall return to the party making such deposit any unused portion thereof. The party requesting such transcript shall be liable for any excess of such fees over such estimate, to be paid before delivery of such transcript.

(Old Rule 21)

22

SUMMONS

The summons issuing from the Court shall read as follows:

UNITED STATES OF AMERICA,

CANAL ZONE

IN THE UNITED STATES DISTRICT COURT OF THE CANAL ZONE

DIVISION OF----------

Plaintiff.

v.

Defendant.

To----------

You are hereby notified to enter your appearance in the office of the clerk of the above-mentioned court, in writing, and make answer hereto, within ten (10) days after the service of this summons and copy of the complaint which is hereto attached, if service be had within the Canal Zone.

And, if served outside of the Canal Zone, you are notified to enter your appearance within forty (40) days after service, and make answer thereto.

Upon the failure to appear within the time aforesaid, the plaintiff will take judgment against you by default, and demand from the said court the relief applied for in the complaint.

WITNESS the Honorable ----------

United States District Judge for the Canal Zone, this ---------

day of ----------, 192---.

Clerk.

(Old Rule 22)

23

PROCEDURE ON APPEAL FROM MAGISTRATE'S COURTS

a. In a civil action where an appeal has been perfected from a magistrate's court to the district court, the party appealing shall pay to the clerk a docket fee of Five Dollars ($5.00) on or before the first day of the next term of the district court, or, if the record on appeal is not lodged ten days before the first day of the next term, then such docket fee shall be paid within ten days after the record on appeal is lodged with the clerk. If such docket fee be not paid within the time fixed, then the appellee may pay such fee, and on motion may have the same judgment entered as that entered in the magistrate's court, plus the appellee's costs in this court, or a trial of the case in the district court.

b. When such case is docketed the clerk shall notify the parties by mail of such fact. If not disposed of as provided above by the rendition of judgment, the plaintiff shall file a written complaint within five days after such notice is mailed, together with a copy thereof for each defendant. The clerk must then forthwith mail to each defendant, or his attorney of record, a copy thereof, and the defendant shall have five days after such mailing to plead thereto. Where the defendant files a cross complaint the same procedure shall be followed as provided above

upon the filing of the plaintiff's complaint. Such time for filing pleadings may be extended by the court or judge. In framing the issues and in the trial and determination of such action on the merits, except as provided herein, the same procedure shall be followed as in a case originally commenced in the district court.

c. Such action shall be tried and determined in the district court on the same issues presented in the magistrate's court; provided, however, that where an appeal is taken from a default judgment, the party defaulted may, upon timely application to the district court and upon a clear showing of mistake, surprise, inadvertence, or excusable neglect, be admitted to plead upon such terms as may be imposed. No pleading or amendment thereto shall be allowed which will increase the recovery beyond the jurisdiction of the magistrate's court. The issues in the magistrate's court shall be determined from the record on appeal transmitted by the magistrate to the clerk of this court.

(New and Code Civ. Pro., Sec. 68–105)

d. In criminal actions appealed from a magistrate's court, the affidavit may be amended in this court as to matters of form or substance where the rights of the defendant are not substantially prejudiced thereby; but the amended affidavit may not charge a crime different from that charged, or sought to be charged, in the original affidavit.

e. If it shall appear from the record on appeal or otherwise be made clearly to appear to the satisfaction of the district court, that the transcript of a magistrate's court does not show all of the proceedings in said court required by law to be shown therein, unless such defects be waived, the following proceedings may be had: The district court shall forthwith notify the magistrate in writing of the precise matter to be considered and allow him to amend his return according to the facts. If he neglects or refuses so to do, the district court may issue a rule requiring such magistrate to appear and show cause why his return should not be amended; but he shall, in no case, be required to amend his return unless it shall clearly appear that the return does not show the proceedings according to the facts.

(Code Civ. Pro., Sec. 71)

LIBERAL CONSTRUCTION—AUTHORITY OF JUDGE

The foregoing rules shall be construed to promote justice. Where the Codes of Criminal or Civil Procedure or these rules fail to specify a procedure in any given case or matter, the court or the judge may adopt and follow such procedure as will insure the due administration of justice between the parties.

(New)

CALVIN COOLIDGE

THE WHITE HOUSE,
July 28, 1925.

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GOVERNMENT PRINTING OFFICE